

HOUSE No. 16

So much of the recommendations of the Inspector General (House, No. 11) as relates to county land disposition

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to county land disposition.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 14 of Chapter 34 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the first paragraph and inserting in place
3 thereof the following paragraph:-

4 In addition to such powers and duties as may otherwise be conferred or imposed by law,
5 the commissioners may provide for erecting and repairing jails and other necessary public
6 buildings within and for the use of their county, but no money shall be paid or liability incurred
7 therefor in excess of the amount specifically authorized by the advisory boards on county
8 expenditures, except for emergency repairs, and no bills for construction or enlargement of a jail,
9 house of correction or reformatory shall be incurred or paid until the plans therefor have been
10 approved by the commissioner of correction, except as otherwise provided. They shall have
11 authority to represent their county, and to have the care of its property and the management of its
12 business and affairs in cases where not otherwise expressly provided; to sell and convey any real
13 estate of the county by deed, sealed with the county seal, signed and acknowledged by them, or

14 to lease any real estate of the county; to adopt a county seal, which shall be in the custody of
15 their clerk and affixed to all processes requiring it; provided, however, that the sale of any county
16 owned real estate customarily used by the county or sheriff for the housing of prisoners,
17 including any jail, house of correction, or other such facility shall be made at fair market value
18 and the net proceeds of any such sale shall be used for the construction of new jails, jail additions
19 or temporary jail facilities, to reimburse the commonwealth for expenditures for such purposes or
20 to reimburse the commonwealth for loans made to a county for the purpose of maintaining and
21 operating the county; and provided, further, that any real estate offered for sale or lease, by a
22 county shall first be offered in writing to the commissioner of capital asset management and
23 maintenance who shall determine whether any other state agency, as defined by section 1 of
24 chapter 7C, has a current or foreseeable direct public use for the property. The commissioner
25 shall have no fewer than 90 days to accept the offer to acquire, through a sale or lease, the
26 property, and upon the non-acceptance by the commissioner of any such offer, shall then be
27 offered in writing for sale or lease to the city or town where such land is located.